

SUMMARY OF INCIDENT

Investigator: Sgt Yee	Team #: 3	Supervisor: Capt Hulton
Date of Report: 8/29/91	CCRB No.: 9101693	Classification: FORCE
Date and Time of Incident: 6/30/91, 0040 hrs		Date and Time Reported to C.C.R.B.: 6/30/91, 0127 hrs
Location of Incident: § 87(2)(b)		Precinct: 070

C O M P L A I N T	NAME	STREET	CITY/TOWNSHIP	STATE	ZIP CODE
	§ 87(2)(b)				
V I C T I M	§ 87(2)(b)				
A T T Y	None Representing _____				

W I T N E S	§ 87(2)(b)
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MEMBERS OF THE SERVICE

RANK	NAME	SUB. WIT.		SHIELD NO.	CMD.	TAX REG. NO.	DUTY STATUS		ASSIGNMENT	RACE
		JECT	NESS				ON	OFF		
PO	Paul Digiacomo	☒	☐	1132	BSTF	886836	☒	☐	Patrol	W
PO	Keith Rossiter	☐	☒	7351	BSTF	892014	☒	☐	Patrol	W
		☐	☐				☐	☐		
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		☐	☐				☐	☐		

ALLEGATIONS	SOURCE	APPENDIX ENCLOSURE NO.
A) Compl. alleges that subject PO punched victim# 1 in the mouth.	UF 245	1B
B) Compl. alleges that subject PO pushed victim# 2 to the ground injuring her.	UF 245	1B

COMMUNICATIONS TO BE ANSWERED:

☐ P.C. Brief	☐ Mayor's Office	☐ I.A.D. Review	☐ Other (specify) _____
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REPORT OF INVESTIGATION OF CIVIL COMPLAINT

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ADDITIONAL REMARKS/COMMENTS (If Necessary)

C.C.R.B. No. 9101693

This investigation arose from a radio run of a man with a gun. The subject officer responded and allegedly punched one victim and pushed another.

Two messages were confirmed to be given to the complainant § 87(2)(b) and victim § 87(2)(b). This confirmed by § 87(2)(b) mother of the complainant and grandmother of § 87(2)(b). Both of them have failed to contact I/O assigned to this case. The other victim § 87(2)(b) stated to I/O that she would be in touch with I/O regarding the case because she retained a lawyer. § 87(2)(b) was sent a letter stating that she should immediately contact I/O if she wish to proceed with this case. The letter was sent on 7/16/91. The return receipt was signed by § 87(2)(b) and returned to I/O by post office. As of this date I/O has not heard from her or her lawyer. The Witness in this case is uncooperative stating she didn't want to talk to I/O and hung up.

In view of the above I/O requests that this case be closed as complainant Unavailable.

SUMMARY OF FINDINGS AND RECOMMENDATIONS

ALLEGATION	CLASSIFICATION				FINDINGS AND RECOMMENDATIONS
	F	A	D	E	
(A)	X				COMPLAINANT UNAVAILABLE COMPLAINANT UNAVAILABLE
(B)	X				

TOTAL ENCLOSURES

INVESTIGATOR'S SIGNATURE

SUPERVISOR'S SIGNATURE

10	<i>Sgt Jue</i>	<i>Lt Gigilobianco</i>
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Lt Gigilobianco

Misc. 830-E (Rev. 1-88/91)